

		<i>As to the Notice:</i> 1. Please include opt-out and workweek dispute forms with the notice. 2. At page 4, please delete the descriptions of the mediator as “experienced, neutral.” Because the notice is Court-ordered, these descriptions could suggest the Court’s official endorsement. 3. Does notice need to be given in any languages other than English and Spanish? 4. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 5. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
5	Dehkordi vs.Modern Creation Inc 2025-01473144	Plaintiff’s Motion for Final Approval CONTINUED TO 12/4/26 AT 9:00 AM IN DEPT CX101
6	Bernard vs. Optima Tax Relief, LLC 2022-01288055	Plaintiff’s Motion for Final Approval Plaintiff’s motion for final approval of the parties’ class action settlement is GRANTED. The Court approves the following distributions: 1. Attorney’s fees in the amount of \$450,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$29,118, the full amount sought. 3. Administration costs in the amount of \$14,250, per the administrator’s declaration. 4. An enhancement of \$10,000 to Plaintiff. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$37,500, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before April 2, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary.
7	Delgado vs. Raffa’s Carniceria Panaderia Taqueria 2025-01457454	Plaintiff's Motion for Approval of Paga Settlement Plaintiff’s motion for approval of PAGA settlement is CONTINUED to October 30, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before October 20, 2026. If a revised settlement agreement and/or proposed notice is submitted, a redline version showing all changes,

	deletions and additions must be submitted as well. In addition, Plaintiff must provide proof of service of any revised settlement agreement and supplemental papers on the LWDA. <i>As to the Settlement:</i> 1. The complaint names three separate Raffa’s locations as defendants, and the settlement agreement names all three locations as parties. However, the settlement agreement is only signed by one Raffa’s entity. What is the relationship between the locations? Are they a single company, or are they separately organized? If they are separately organized, doesn’t each location need to sign the agreement? 2. How many aggrieved employees are at issue? 3. Please provide a bid from the settlement administrator. 4. Section 4.3.b of the agreement sets the date for Defendants to begin monthly installment payments, but it is internally contradictory. It says the first payment is due “thirty (14) business days” after the Effective Date. Which date is correct? 5. If an installment funding structure is required due to the state of Defendants’ finances, Defendants must file a declaration explaining their finances and why an installment plan is necessary. If they wish the declaration to be confidential, they must follow the Rules of Court regarding sealed filings. 6. Defendant turned over time and pay records for the aggrieved employees. Was this a sampling of records? If so, how large (e.g., 10%), and what steps were taken to ensure the sampling was representative? 7. Did counsel interview any employees other than Plaintiff? 8. Counsel states that the parties mediated in April 2026, and the case settled several months later after “additional informal discovery.” What additional informal discovery took place after the mediation? 9. Counsel’s valuation of the PAGA claim is inadequate for the Court to discharge its approval duties. “[A] trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77.) For each predicate Labor Code violation, please explain the theories of prosecution and defense, the evidence supporting those theories, and the likelihood of success. The Court cannot determine whether the settlement is fair without this information. (See <i>ibid.</i> (citing <i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116 and <i>Dunk v. Ford Motor Co.</i> (1996) 48 Cal.App.4th 1794).) 10. Please provide contemporaneously made billing records for lodestar cross-check purposes. 11. Has Plaintiff separately settled her individual claims? If so, please provide a copy of the settlement agreement. The court requires this information to evaluate the fairness of the PAGA settlement. <i>As to the Notice:</i> 1. The notice should include a description of the claims to be
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		released by the aggrieved employees. 2. The notice should state that the aggrieved employees will not be retaliated against for cashing settlement checks. 3. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 4. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
8	Moreno vs. Circle Liquidators, LLC 2025-01519017	Plaintiff's Motion for Separate Proceedings Against Non-Debtor Defendants Plaintiff Samantha Moreno’s unopposed motion to proceed separately against Defendants Ryan C. Maresch and Jose Lim-Valle is GRANTED. However, as set forth below, the Court has serious concerns about how Plaintiff’s class claims can move forward against Maresch and Lim-Valle in the absence of bankrupt Defendant Circle City Liquidators, LLC (“CCL”). Plaintiff should be prepared to address these concerns at the hearing. <u>GROUNDNS FOR RULING</u> I. Background This action is based on class claims for wage-and-hour violations and Plaintiff’s individual wrongful termination claims for complaining about the alleged wage-and-hour violations. Maresch and Lim-Valle are allegedly the owners and managing agents of CCL, the employer defendant. As to the class claims, Plaintiff seeks to hold Maresch and Lim-Valle individually liable under LC § 558.1. As of the date of this hearing, only Lim-Valle has made an appearance. After this case was filed, CCL filed for bankruptcy under Chapter 7 of the Bankruptcy Code. The case is therefore stayed as to CCL. (ROA 53.) II. Discussion “The Court, in furtherance of convenience or to avoid prejudice . . . may order a separate trial of . . . any separate issue.” (CCP § 1048(b).) Plaintiff argues bifurcation of the claims against Maresch and Lim-Valle is appropriate because the bankruptcy stay is inapplicable to LC § 558.1 claims against them. She relies on <i>Boucher v. Shaw</i> (9th Cir. 2009) 572 F.3d 1087. In <i>Boucher</i>, the plaintiffs sued the managers of a bankrupt casino (originally filed under Chapter 11, later converted to Chapter 7) for unpaid wages under Nevada law and the FLSA. The district court dismissed the case, and the plaintiffs appealed. The Ninth Circuit certified to the Nevada Supreme Court the question of whether managers can be held liable for unpaid wage claims as “employers” under Nevada law. The Nevada Supreme Court answered in the negative. As a result, the sole remaining question was whether the managers could be individually liable under the FLSA. The managers didn’t argue they weren’t “employers” under the FLSA. Instead, they argued the casino’s conversion to Chapter 7 bankruptcy extinguished any individual duty they had to pay wages to the plaintiffs. The Ninth Circuit rejected this argument. It explained, “Thus, section 362(a) does not stay actions against guarantors, sureties, corporate affiliates, or other non-debtor parties liable on the debts of the debtor.” (<i>Id.</i>, at p. 1092 (internal quotation omitted).) “[O]ur case law regarding guarantors, sureties and other non-debtor parties who are liable for the debts of the debtor leaves no doubt about the answer: the [casino] bankruptcy has no effect on the claims against the individual managers at issue here.” (<i>Id.</i>, at p. 1093.)